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COMMITTEE SUBSTITUTE
FOR
SENATE BILL NO. 915

and

An Act relating to solar energy facilities; defining terms; requiring certain newly constructed facilities to meet certain standards; providing applicability; providing for fee payment; directing rule promulgation; providing for codification; providing an effective date; and declaring an emergency.

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 160.41 of Title 17, unless there is created a duplication in numbering, reads as follows:

1. "Commercial solar energy facility" means an installation of interconnected photovoltaic, ground-mounted solar panels on a tract of land in this state, which generate electricity for distribution. Provided, the term shall not include any solar energy generated through distributed generation installed by residential customers; and

1 2. "Distributed generation" means distributed generation as
2 defined in Section 156 of Title 17 of the Oklahoma Statutes.

3 B. Any commercial solar energy facility constructed on land
4 owned and leased by the Commissioners of the Land Office on and
5 after the effective date of this act shall:

6 1. Be installed on permanent grass that is suitable for
7 livestock grazing. Provided, the landowner shall not be liable for
8 any damage to the facility caused by livestock;

9 2. Be constructed at not less than six (6) feet high from the
10 lowest point of the solar panel;

11 3. If there is more than one row of solar panels, provide not
12 less than twenty-five (25) feet of space between each row;

13 4. Be constructed not less than three hundred (300) yards from
14 the nearest point on the outside wall of any residential dwelling;

15 5. Promote optimal runoff flow with diversions, terraces,
16 basins, and other earthworks to prevent soil loss and erosion; and

17 6. Be liable for all soil erosion occurring along the land in
18 which the panels are installed for the life of the project.

19 C. Upon the effective date of this act, the Commissioners of
20 the Land Office shall be required to make a payment in lieu of ad
21 valorem taxes with respect to real property located in any county of
22 this state that has a commercial solar facility installed. The
23 Commissioners of the Land Office shall make the required payment to
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1 the county treasurer of the county not later than December 31 of
2 each year.

3 D. 1. A leasing agreement offered to a landowner by an
4 operator of a solar energy facility shall, if elected by the
5 landowner, offer the same provisions as prescribed in paragraphs 1
6 through 6 of subsection B of this section. The landowner may elect
7 not to include such provisions in the leasing agreement.

8 2. The monetary rate offered in such leasing agreement shall be
9 proportional to the amount of power generated by the operator of the
10 commercial solar energy facility.

11 E. The Corporation Commission shall enforce the provisions of
12 this act and may promulgate any rules necessary to effectuate the
13 provisions of this act, including the assessment of fines and fees.

14 SECTION 2. This act shall become effective July 1, 2025.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

19 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
20 March 6, 2025 - DO PASS AS AMENDED BY CS

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